

As is evidenced by the number of disputed factual claims in the motion and opposition, too many questions of fact on the issue remain. Accordingly, the motion for summary adjudication on FACC's claim for quiet title is denied.

B. Declaratory Relief/Injunctive Relief

Code of Civil Procedure section 1060 allows for the bringing of an action for declaratory judgment in order to ascertain the ongoing rights and duties of parties to an actual controversy. " 'One test of the right to institute proceedings for declaratory judgment is the necessity of present adjudication as a guide for plaintiff's future conduct in order to preserve his legal rights.'" (*Meyer v. Sprint Spectrum L.P.* (2009) 45 Cal.4th 634, 647.)

For the same reasons as stated above, there are multiple issues of material fact with regards to the underlying use of the Roadway to grant summary adjudication on the issue of ownership and use.

As regards the claims for injunctive relief, the cause of action is not an individual claim but rather a remedy based on another claim. Because the quiet title claim survives the motion or summary judgment, so does the claim for injunctive relief.

C. Slander of Title

"Slander or disparagement of title occurs when a person, without a privilege to do so, publishes a false statement that disparages title to property and causes the owner thereof " 'some special pecuniary loss or damage.'" (*Sumner Hill Homewoners' Assn., Inc. v. Rio Mesa Holdings* (2012) 205 Cal.App.4th 999, 1030.)

Plaintiffs asserts that they are entitled to summary adjudication on this claim because there was never a false statement about easement rights, because Sara does not in fact have any such rights.

Where, as here, the alleged title is based on prescriptive rights, there can be no slander of title claim *until* the determination of title has been made by the Court. (*Id.* at 1028-1029.) Because there has been no determination as to Rader's claimed rights, she cannot maintain a cause of action for slander of title.

Accordingly, summary judgment on the claim for slander of title is granted.

IV. Evidentiary Rulings

The parties objected to various statements and exhibits. However, none of the contested items were material to the disposition of the motion, and accordingly the Court does not rule on any of the evidentiary objections to evidence. (Code Civ. Proc. §437(q).)

V. Conclusion

For all the foregoing reasons, Plaintiffs' motion for summary judgment/adjudication is granted in part and denied in part. The Motion is denied on the claims for quiet title, injunctive relief and declaratory judgment. The Motion is granted on the cause of action for slander of title.